

Opinion of the Court

of new norms of international law would raise risks of adverse foreign policy consequences, they should be undertaken, if at all, with great caution. Cf. *Tel-Oren v. Libyan Arab Republic*, 726 F. 2d 774, 813 (CA DC 1984) (Bork, J., concurring) (expressing doubt that § 1350 should be read to require “our courts [to] sit in judgment of the conduct of foreign officials in their own countries with respect to their own citizens”).

The fifth reason is particularly important in light of the first four. We have no congressional mandate to seek out and define new and debatable violations of the law of nations, and modern indications of congressional understanding of the judicial role in the field have not affirmatively encouraged greater judicial creativity. It is true that a clear mandate appears in the Torture Victim Protection Act of 1991, 106 Stat. 73, providing authority that “establish[es] an unambiguous and modern basis for” federal claims of torture and extrajudicial killing, H. R. Rep. No. 102–367, pt. 1, p. 3 (1991). But that affirmative authority is confined to specific subject matter, and although the legislative history includes the remark that § 1350 should “remain intact to permit suits based on other norms that already exist or may ripen in the future into rules of customary international law,” *id.*, at 4, Congress as a body has done nothing to promote such suits. Several times, indeed, the Senate has expressly declined to give the federal courts the task of interpreting and applying international human rights law, as when its ratification of the International Covenant on Civil and Political Rights declared that the substantive provisions of the document were not self-executing. 138 Cong. Rec. 8071 (1992).

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These reasons argue for great caution in adapting the law of nations to private rights. JUSTICE SCALIA, *post*, p. 739 (opinion concurring in part and concurring in judgment), concludes that caution is too hospitable, and a word is in order